

Inspecting pet shops

Lance Jepson



Lance Jepson qualified from the University of Cambridge in 1989. He started his career in small animal and general practice, but is now director of Origin Vets, an exotic-only practice in South Wales. He has written many books on reptile and fish care, plus veterinary texts on exotic animal medicine.

Anyone wishing to sell vertebrate animals as pets in the UK is obliged to apply for a license from their local authority under the Pet Animals Act (PAA) 1951. Drafted as 'An Act to regulate the sale of pet animals', this is a relatively small piece of legislation that is over 60 years old and stands out as something of an anomaly against other, more recent legislation. In short, pet shop inspections can suffer from a lack of joined-up legislation. This article looks at some of the background issues of pet shop licensing and gives practical advice on how to conduct such an inspection.

Changes to the pet industry since 1951

Since the Pet Animals Act (PAA) 1951 came into being over 60 years ago, there have been several major changes to the pet industry. The pet trade itself has seen a rise in exotic pets; the number of reptiles kept as pets in the UK is estimated to be around eight million (EUARK 2012). There are also thought to be around one million pet rabbits (PAW 2013). Alongside this growth in popularity, there has been a reactive increase in our knowledge of their requirements, serviced by improved products available within the pet trade. There are also more specialist pet retail outlets, in particular for reptiles and aquatic species, in addition to large national chain stores.

The enthusiasm for exotic species, and the potential money that can be made from them, can occasionally produce 'fads' that seriously challenge animal welfare (Figs 1, 2).

Box 1: Important definitions

What is a pet?

Any mention of the word 'animal' in the Act is deemed to refer to a vertebrate (PAA 1951 7[3]). Further to this, they can be 'cats and dogs' (PAA 1951 7[2a]) or 'any animal... for ornamental purposes' (PAA 1951 7[2b]). Therefore, a pet is any fish, amphibian, reptile, bird or mammal sold to be kept for ornamental (or companion) purposes.

What is a pet shop?

This is any premises, including a private dwelling (PAA 1951 7[1]), where animals are sold as pets or kept for the purpose of selling. However, there are exceptions; for example, if one is breeding 'pedigree' animals then one can sell the offspring without attracting a licence (PAA 1951 7[1a]), or even if one buys in 'pedigree animals' and decides not to keep them, they can be subsequently resold without a licence (PAA 7[1b]).

What is a pedigree animal?

The PAA 1951 7(3) defines this as 'an animal of any description which is, by its breeding, eligible for registration with a recognised club or society keeping a register of animals of that description'.

Legislation

Pet shop inspections can suffer from a lack of joined-up legislation. For example, pet shops are specifically excluded from the Dangerous Wild Animals Act 1976 (DWAA 1976) [5[3]] and the Zoo Licensing Act 1981 (ZLA 1981) [1[2]]. However, some establishments clearly contain elements of these Acts, and it is not unknown for wily shop owners to attempt to avoid the rigours of these Acts, in particular the ZLA 1981, by hiding behind the PAA 1951. Box 1 gives some important definitions from the PAA 1951.

A list of legislation relevant to pet shops is provided in Box 2.

The PAA 1951 legislates fairly lightly on welfare, contenting itself to the vague, yet all-encompassing, following five points:

- Animals will at all times be kept in accommodation suitable with respect to size, temperature, lighting, ventilation and cleanliness.
- Animals will be adequately supplied with suitable food and drink and, so far as necessary, be visited at suitable intervals.
- Animals, being mammals, will not be sold at too early an age.
- All reasonable precautions will be taken to prevent the spread among animals of infectious diseases.
- Appropriate steps will be taken in case of fire or any other emergency.

So, provided that animals in a pet shop are kept in the correct environment, are fed and watered, are old enough to feed themselves (in the case of mammals), disease spread is addressed and they are not cooked or drowned, then the legislation is complied with. However, when veterinarians are inspecting a pet shop they must also be aware of the Animal Welfare Act 2006 (AWA 2006), which states that one must provide for the needs of that animal (AWA 2006 9 [1, 2]). These needs are defined as:

- Its need for a suitable environment;
- Its need for a suitable diet;
- Its need to be able to exhibit normal behavioural patterns;
- Its need to be housed with, or apart from, other animals;
- Its need to be protected from pain, suffering, injury and disease.



Fig 1: Miniature ecosystem. A small aquarium housing a snail, a *Hymenochirus* species frog and a piece of bamboo exemplifies the extremes that some pet crazes can take



Fig 2: Pet-keeping fads, such as keeping pet frogs, can compromise the welfare of large numbers of animals

Box 2: Relevant legislation

- Animal Welfare Act 2006
- Dangerous Wild Animals Act 1976
- Import of Live Fish Act 1980
- Pet Animals Act 1951
- Wildlife and Countryside Act 1981
- Zoo Licensing Act 1981

Additional relevant legislation

England

- Dangerous Dogs Act 1991
- Breeding of Dogs Act 1973
- EU Regulation on the Protection of Animals During Transport (EC) 1/2005
- Welfare of Animals (Transport)(England) Order 2006
- Docking of Working Dogs' Tails (England) Regulations 2007
- The Mutilations (Permitted Procedures)(England) Regulations 2007
- EU Wildlife Trade Regulations; Council Regulation (EC) No. 338/97 implements CITES (Convention on International Trade in Endangered Species of Wild Fauna and Flora) in the European Community
- The Conservation of Habitats and Species Regulations 2010; implement the EU Habitats Directive: Council Directive 92/43 EEC

Scotland

- Control of Dogs (Scotland) Act 2010
- Welfare of Animals (Transport)(Scotland) Order 2006
- Animal Health and Welfare (Scotland) Act 2006
- The Prohibited Procedures on Protected Animals (Exemptions)(Scotland) Regulations 2010
- The Licensing of Animal Dealers (Young Cats and Young Dogs)(Scotland) Regulations 2009

Wales

- Welfare of Animals (Transport)(Wales) Order 2007
- Docking of Working Dogs' Tails (Wales) Regulations 2007
- The Mutilations (Permitted Procedures)(Wales) Regulations 2007

Northern Ireland

- Welfare of Animals (Docking of Working Dogs' Tails and Miscellaneous Amendments) Regulations (Northern Ireland) 2012
- Dangerous Wild Animals (Northern Ireland) Order 2004
- Zoos Licensing Regulations (Northern Ireland) 2003
- Wildlife and Natural Environment Act (Northern Ireland) 2011

One of the main advances with the AWA 2006 was the defining of the responsibility of care of a given animal and, although the owner (provided that they are over the age of 16) always has a responsibility, there is also a responsibility of care on those who look after the animals on a day-to-day basis [AWA 2006 3[1-4]]. This, arguably, can be applied to the pet shop assistants and managers, irrespective of whether they are the legal owners or not. There is at least one large chain of pet shop that supports a charitable arm, providing an adoption service for unwanted pets, and the pet store rents out or provides space to display charity-owned animals for adoption. Although these animals are not technically part of the pet shop and, therefore, it could be argued that they fall outside the PAA 1951 inspection, the AWA 2006 means that they should also be assessed in the inspection, as the shop staff who clean and feed them may be held responsible under the AWA 2006.

Other relevant legislation includes the DWAA 1976 and the ZLA 1981. As mentioned previously, pet shops are specifically excluded from the DWAA 1976, so that for animals listed on the Schedule of section 7 of the DWAA 1976 the Act need not apply (Fig 3). However, the local authority is able to both define which species of animals are to be included on the PAA 1951 licence and list extra conditions as needed. In view of the fact that the needs and capabilities of a given animal do not change when it is kept in a pet shop or in a private house, and that contact with the public is more likely to happen in a shop situation, I would always recommend defaulting to the DWAA 1976 guidelines, even though this is a separate piece of legislation.

The ZLA 1981 is there to regulate the conduct of zoos and, in particular, emphasises the roles of conservation, research and education that a modern zoo must have. This Act covers the public display of species not normally domestic to the UK, but was never intended to cover every



Fig 3: Species listed under the Dangerous Wild Animals Act 1976, such as this baby caiman, can legitimately be sold by licensed pet shops, but their long-term residence as attractions at the shop does blur the boundaries between the Pet Animals Act 1951 and the Zoo Licensing Act 1981

type of animal exhibit. The most commonly used example is that of the aquarium in a dentist's waiting room, which should not come under this Act.

Many pet shops have display animals, however, and these can be valuable to the shop. Displays enable customers to see how equipment can be set up and used (in particular for aquaria and vivaria) and they allow the shop to demonstrate optimal or different styles of care (Fig 4), and even eventual adult size. As such, they can perform an educational as well as sales role. Some shops may abuse this by gathering together a group of more unusual display animals in order to attract custom (Fig 5), in turn becoming a de facto zoo, yet claiming to still be a pet shop. The veterinary surgeon, in conjunction with the local authority, may have to make a judgement on this, but if it looks like a zoo (eg, it has a number of permanent exhibits with animals not-for-sale or priced at ludicrous levels, and houses species not normally offered for sale in the UK), then there is a good chance that it should be regarded as a zoo. Note that the definition of a zoo refers to the display of species not normally domestic or farmed in the UK to the public, for seven days or more in a year, with or without an admission charge [ZLA 1981 21[1]].

Import of Live Fish Act 1980

The legislation on the import of live fish limits the import, keeping and release of non-native fish species that may be able to survive in the UK. Primarily, this refers to fish likely to be sold as pond-fish (although goldfish and carp [*Cyprinus*] varieties are excluded, along with ornamental varieties of native species) and the shop may need to be licensed to sell certain species such as sunfish (*Lepomis* species) (Fig 6). A list of fish species covered is available to download at www.defra.gov.uk/aahm/files/Form-ILFA1-Leaflet.pdf.

Additional conditions

The saving grace of the PAA 1951 is section 1(2), which states that a licence can be granted 'subject to compliance with such conditions as may be specified in the licence.' As the local authority issues the licence, this means that it has the ability to impose conditions to the licence in addition to their standard conditions. However, any such additional conditions should be reasonable and justifiable both within the current legislative environment and, where changes relating to animal welfare are concerned (eg, dietary alterations or habitat modifications), within the body of accepted good practice for that species, as such conditions are potentially open to challenge.

Role of the veterinary surgeon in pet shop inspections

The primary role of the veterinary surgeon in a pet shop inspection is to be there as an expert on the care and husbandry of those animals in the shop and to be an arbiter of animal welfare. The PAA 1951 does make provision in section 4(1) for veterinary surgeons to be used as it states that 'A local authority may authorise in writing any of its officers or any veterinary surgeon or veterinary practitioner'. This means that the local authority is not obliged to employ a veterinary surgeon for this: It can be anyone that they deem fit to engage in the inspection and, anecdotally, this has often been someone with insufficient knowledge or experience to truly undertake the inspection. Sadly, many veterinary surgeons may also fall into this category, especially with the increase in specialist businesses, such as aquatics and reptile outlets, where the amount of technical information required to make an assessment may be outside their normal experience. The inspection report that is generated may be subject to challenge and Freedom of Information



Fig 4: A pet shop display set up to demonstrate optimal or different styles of care to potential customers



Fig 5: Some pet shops may use more unusual display animals to attract custom. This could result in them becoming a de facto zoo rather than a pet shop

Act requests, so one should be reasonably confident of one's knowledge before agreeing to undertake such an inspection.

In some cases, a veterinary surgeon is used for the initial inspection and local authority-designated officials are used for subsequent visits.

Pre-inspection

Before undertaking the inspection, you should receive a copy of the licence application or the previous licence, which will indicate the number and types of species that are stocked at present in the shop, plus any extra conditions that have been applied to the business. This gives an opportunity to review the licence, and to read-up or seek advice on any species that you may not consider yourself to be familiar with.

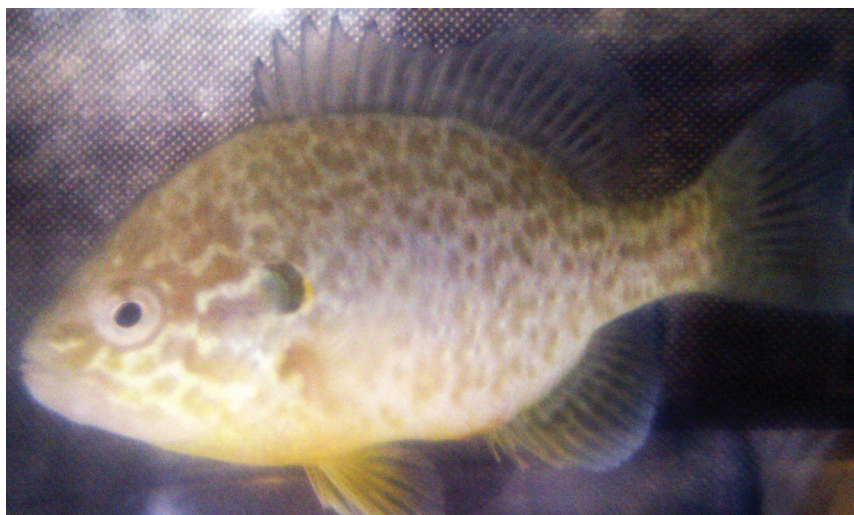


Fig 6: The possession and sale of some non-native fish, such as North American sunfish (*Lepomis* species), requires the shop to be licensed under the Import of Live Fish Act 1980

Guidelines

There is always likely to be a conflict between optimum animal welfare and the sale of animals. The business model of a pet vendor is to have an animal for the shortest period of time and that the animal carer will be able to clean it out, feed it and otherwise provide for it as rapidly and as safely as possible, and to be able to capture it for sale quickly and with minimal stress. The animals are housed in such a way as to optimise visibility to the potential customer and to maximise the number of animals on display in a given area. Typically, animals for sale tend to be young (and therefore of a smaller size), which can circumvent problems with territoriality, large adult size and, to a lesser extent, correct social structure (Fig 7).

Potential welfare issues include the long-term provision of appropriate care with regard to suitable housing, companionship (or otherwise), social environment and environmental enrichment in all its forms. Depending on a species' natural characteristics, temporary suboptimal-sized housing of adults or species not normally catered for may be acceptable in the short-term (within accepted norms of animal welfare) while a new home is sought or requisitioned. Short-term in this context may vary between species, but arbitrarily should constitute no more than six weeks, beyond which either suitable accommodation should be created or the animal moved on to more appropriate ownership. The issue of what happens to unsold animals is a real one and shops should consider how they would manage long-term residents without compromising their basic needs and, indeed, how those needs will change with the age and sexual maturity of the animal. An albeit extreme example would be an African spurred tortoise (*Centrochelys sulcata*) (Fig 8). A shop offering an 8 cm long hatchling would not be expected to be able to provide for it for the next 100 plus years and provide eventual accommodation for a 90 kg bulldozer of a tortoise, but they should have in place a realistic idea of how they would manage unsold stock.



Fig 7: The small size of young animals, such as these hatchling tortoises, allows larger numbers to be stocked in the available space than would be the case for larger, adult specimens. The shop should make potential purchasers aware of the final adult size of the animals they sell



Fig 8: The issue of what happens to unsold animals is a real one. A shop selling African spurred tortoise hatchlings might not be expected to provide eventual accommodation for a 90 kg adult, but it should still have a realistic idea of how they would manage unsold stock

There have been several attempts to offer guidance to members of the pet trade and beyond, and these have generally fallen into two categories. The first is to try to define how suitable a given animal species is to be kept as a pet, and published papers include Schuppli and Fraser (2000) and Warwick and others (2013). Such schemes would be beneficial to inspectors to give an indication of how difficult a species is to keep relative to the perceived standards of the shop and its staff, but no such scheme has been universally accepted. The second category is more useful with regard to the inspection process itself, and it attempts to offer good minimum standards of husbandry. Two such examples are the Pet Care Trust Quality Assurance Standard for Pet Retailers (QASPR) (2009) and the Model Conditions for Pet Vending Licensing 2013, issued by the Chartered Institute for Environmental Health (CIEH). Such guidelines are good, but they are only recommendations and there is nothing to prevent inspectors suggesting improvements beyond these if they are reasonable and rational. For example, Section 1 of the CIEH on fish refers almost exclusively to recommended water parameters, largely using excellent advice developed by the Ornamental Aquatics Trade Association (OATA). There are, however, often welfare issues in aquarium fish caused by inappropriate mixing of fish species, particularly with intra- and interspecies aggression – members of the cichlid group being a good example. If such a situation was identified then improvement notices or licensing conditions could be used to rectify and prevent similar future problems. This highlights not only the potential flexibility of the legislation but also a potential serious weak spot – that the inspectors must be sufficiently familiar with fish to be able to identify such problems in the first place.

The inspection

The inspection itself is normally performed with a representative of the local authority present. Some local

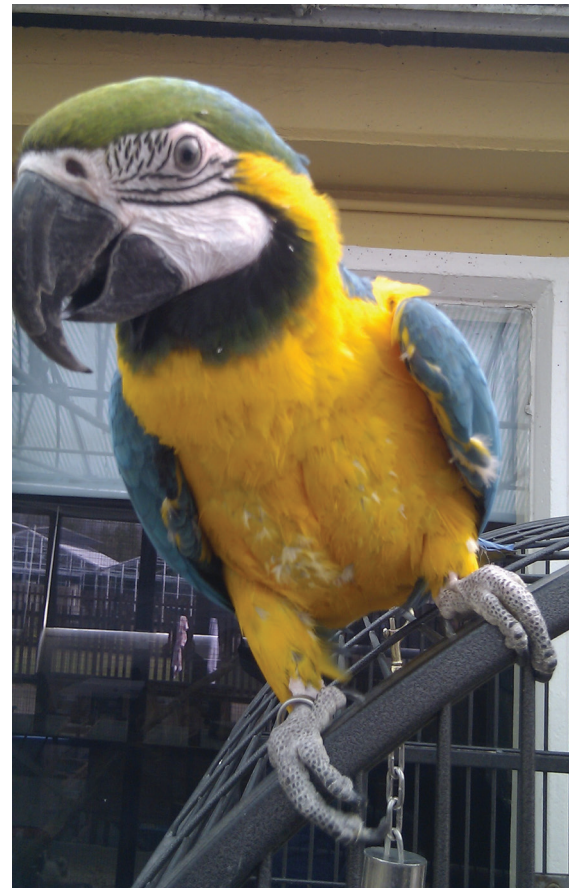


Fig 9: Large, vocal psittacines, such as macaws, may cause sound nuisance and so the position of the business premises in relation to other properties needs to be considered

authorities have dedicated animal welfare officers who are familiar with the relevant concepts and legislation, while others do not. This variation in knowledge between local authorities can reflect which division of the local authority has responsibility for pet shop licensing, which could be, for example animal health, licensing or food and safety.

General considerations

Shop layout

Consider the general layout of the shop, including the relative positioning and suitability of adjacent species; for example, are prey animals kept next to predator species. Ferrets kept adjacent to rabbits may not be appropriate, and a defined dog-free zone may be necessary in shops housing rabbits and guinea pigs at floor level with transparent barriers. In cases where the business premises is based in the owner's residence, its position relative to other properties may be of particular relevance, especially where sound nuisance may occur, such as with dogs or large vocal psittacines (eg, macaws) (Fig 9).

Staffing

The number of staff, including both permanent and temporary staff, should be assessed. This should include a degree of cover for holidays and sickness. Also assess the level of experience and any appropriate qualifications of the staff and, where appropriate, whether there is a Registered Qualified Person (RQP)/Suitably Qualified Person (SQP) in such cases where POM-VPS or NFA-VPS medicines are on sale in the shop.

It may be necessary to form a view of the overall knowledge of the staff with regard to the species involved. This will take into account a variety of factors including their qualifications and their apparent knowledge of the species present and their husbandry. This can be partly assessed by engaging them in conversation. Pet shops are often still the first point of contact by pet owners for advice and, therefore, this must be reflected in the standard of knowledge offered by the proprietors or staff. There should always be sales staff available with the knowledge and capability of giving appropriate customer advice on those species in the shop during periods when animals are available for sale, although some shops may offer restricted sales times depending upon the availability of trained staff. One may need to take a view on whether this is appropriate or not.

If the shop is selling dogs, cats or rabbits, knowledge of routine vaccinations, worming and neutering should be demonstrated as part of the point-of-sale advice package, even though most of these require subsequent veterinary input. Those shops selling fish should demonstrate knowledge of the changes in water parameters during the maturation process of a newly established aquarium filter. This is basic information that is the foundation of good fish keeping.

Trade memberships

Examples of trade organisations that shops might belong to are the Pet Industry Federation, OATA and the Reptile and Exotic Pets Trade Association (REPTA).

Overview of species

The actual licence will stipulate which species groups are for sale or intended for sale and will give maximum numbers allowable based upon facilities and other factors. For existing businesses, this can be cross-checked with the current licence. Take the opportunity to discuss aspects of care of the animals that are up for sale or are intended to be sold from the premises to further assess competency.

Health management

Staff disease risk management

The proprietors and staff should be aware of the common human health risks associated with the types of animals stocked, and how these can be ameliorated. These would include physical risks, such as bites, scratches and envenomation, as well as zoonotic infections and potential allergies. Written risk assessments should be undertaken and available for these common risks. Local authorities can usually help the business with these.

Animal disease risk management

The proprietors and staff should be aware of the common diseases associated with the types of animals stocked and how these can be avoided, managed or dealt with. Quarantine/isolation areas may form part of this. Standard Operating Procedures (SOPs) for all animal-related tasks, such as cleaning and handling, should be established and written as an aid to reduce risk.

Pest control

Depending upon the type of pet business, pests could include rodents, birds and insect species, such as cockroaches. Note that some shops may need to keep or sell potential pest species as live food (eg, crickets), and a management policy for escapees should be in place. The business may engage with a pest-control specialist firm or manage this itself. Local authorities can usually advise the business if necessary.

Veterinary surgeon details

All pet shops should be registered with a local veterinary surgeon. In addition, they may also be registered with a more specialist veterinary surgeon, depending upon the species stocked.

Stock management

Sales, purchase and refusal lists

Sales, purchase and refusal lists (ie, a record of those customers or occasions when the sale of an animal to a customer has been declined by the shop) should be maintained and be kept up-to-date and available for inspection. These can be in the form of computerised or hard copies. If computerised copies are used, then a back-up facility should be available.

Transportation

Where applicable, the business should have Defra-approved transport for live animals.

Stock inspection routine

As part of the inspection, the inspector should be talked and/or walked through the usual daily inspection routine. This especially applies to aquatic outlets where regular inspection for signs of disease or ill health is essential. A daily diary will be of use here. Animal deaths should be recorded and be available for inspection. High mortality rates may indicate a serious problem.

Isolation facilities

All pet shops should have the ability to isolate stock that require treatment or recovery. For ornamental fish, the use of 'dump tanks', where all sick fish are transferred for treatment, should be viewed with caution; in many cases, humane euthanasia of chronically diseased fish may be more appropriate from both an animal welfare and a commercial stand point.

Medicines storage

A lockable storage cupboard or area should be available for the storage of all medicines to be used on shop animals. Attention should be paid to the legislation involving the storage of POM-VPS and any POM-V medicines supplied by the pet shop's veterinary surgeon.

Veterinary records

Basic veterinary records for individual animals or groups of animals should be kept and be available for inspection. These should include basic details of illness or disease, plus any treatment that was required. It is acceptable for the main veterinary records to be maintained by the business's veterinary surgeon rather than the shop itself.

Quarantine management

A true quarantine area (ie, for new arrivals) is to be strongly encouraged. This should be separate and distinct from the isolation facility. Quarantining and isolating the same or similar animals in the same space is likely to compromise any kind of biosecurity. As an example, quarantining newly arrived guinea pigs in the same room as those under treatment for ringworm is unlikely to be useful. Such facilities must have their own sets of cleaning utensils, and footbaths for staff entering and leaving may be appropriate, depending upon the species housed. Many aquatic retailers do not quarantine their fish stocks, instead relying upon the time spent at the wholesalers to functionally quarantine them. Where fish have a specified quarantine period or a period of rest before being offered for sale, this is typically undertaken in sale tanks. Unfortunately, true quarantining is becoming an



Fig 10: An unweaned psittacine. The sale of such birds, although not illegal, should be noted, monitored and discouraged

uncommon practice and this can often lead to significant and continuing disease issues in aquatic retail outlets.

Backup systems

Aquaria and vivaria, plus general background heating and ventilation, require energy input and, therefore, a backup system should be in place in case of a disrupted energy supply. This may be an on-site generator, or a standing agreement with a generator hire company. For smaller levels of stock, transport to an alternative establishment may be appropriate.

Sale of animals

Care sheets

As a minimum, care sheets should cover the main species or species groups stocked. For individual species, the information stated on the sheet, as a minimum, should include name, scientific name, country of origin, social requirements, dietary needs and environmental requirements (eg, temperature ranges, provision of correct lighting, etc). The information should be clearly presented and easy to read. Downloads from websites may not be suitable.

More general sheets, covering techniques such as how to set up an aquarium, would also be recommended to those shops selling stock that requires certain technical knowledge. The process of preparing care sheets can also be a means of encouraging the pet shop proprietors to engage with some of the nuances of some species' care and husbandry. If you are unsure of the standards of knowledge of the proprietor, then you can ask the local authority to complete and sign off the care sheets, with input from yourself, as a condition of the licence. Codes of practice for the welfare of dogs, cats and rabbits are available for download from the Welsh Government website (Welsh Government 2012).

Minimum age at sale (where applicable)

Mammals legally need to be weaned before they are offered for sale (PAA 1951 1[3c]). Although this legislation does not apply to birds, the sale of 'unweaned' psittacines, or similar birds, should be noted, monitored and discouraged (Fig 10).

Internet sales

Restrictions on internet sales do not refer to the advertising of stock on the internet, but to the supply of livestock direct to a remote purchaser as a result of an Internet sale. Livestock should be sent out by an appropriate method, such as by a courier licensed to transport animals. Royal Mail/Parcel Force recommend that for 'Live creatures, insects and invertebrates' they must be boxed and packaged to protect the creatures and the Royal Mail/Parcel Force staff and customers from harm. First class post should be used as the minimum service. Items must be clearly marked 'Urgent – living creatures – handle with care' (Royal Mail 2013).

Food management

Food storage and preparation facilities

Food storage and preparation facilities should be adequate in size and type for the species housed. Refrigerators and freezers should be in good order and temperatures should be monitored and logged. Food preparation surfaces should be suitable for easy cleaning and sterilisation if necessary. Live foods should be appropriately housed and catered for. There should be no overlap of use between these facilities and the food storage/eating areas of the staff.

Utensil cleanliness

All food bowls, water bowls and other feeding utensils, such as feeding tongs, should be clean and in good order.

Diet sheets

Diet sheets including food types, preparation instructions where necessary and feeding routines should be readily available such that all permanent and temporary staff can refer to these when appropriate.

Health and safety

Waste disposal

The pet shop should be seen to comply with waste disposal regulations to the satisfaction of the local authority. Of particular concern is the disposal of carcasses and parts of carcasses, such as may be left by carnivorous species.

Electrical safety

Commercial electrical safety tests and certification should be undertaken to comply with current legislation and good practice.

Fire safety

Evidence of an assessment by the local fire department should be seen (these are typically offered free-of-charge). There should be suitable numbers and types of extinguishers, and suitable emergency exits, with correct signage as required.

Insurance

Commercial insurance should be in place, and be of an appropriate amount for the business in question.

Animal care

It must be borne in mind that, although a pet shop inspection is undertaken under the PAA 1951, the AWA 2006 still applies and so actual and potential breaches of that legislation must be taken into consideration and brought to the attention of the licensee.

In the UK, the PAA 1951 refers only to vertebrate animals, and therefore a business selling solely invertebrates falls outside of this legislation. However, the AWA 2006 1(3) does give provision for the inclusion of invertebrates by

'the appropriate national authority' and, therefore, these animals should be considered during the course of an inspection. Typical pet shop invertebrates would include tarantulas, land hermit crabs, stick insects, millipedes (Fig 11), aquatic shrimps, terrestrial and aquatic snails, corals and anemones and, by extension, would also include those species offered as live foods. Action in relation to invertebrate welfare is therefore unlikely to be enforceable at this time, but inspectors should make a note and comment on any perceived deficits or improvements regarding invertebrates as part of their inspection report.

Although uncommon, some businesses may offer vertebrate animals as live foods. It is not illegal to feed vertebrates as live foods in the UK, but their welfare before use should be no different to that of similar species on sale. If euthanased immediately before use, then the staff should be able to demonstrate some knowledge of the rapid and humane euthanasia of such animals. This does not entail the destruction of an animal as a demonstration.

Sufficient space?

Although seemingly obvious and intuitive, the question of what is sufficient space depends upon a familiarity with the species involved, including their biological and behavioural needs. There is often a degree of compromise between the ideal housing and the practicalities of housing a given animal in a pet shop for the short space of time before its sale. These considerations must be undertaken within the boundaries of good animal welfare and this balance should shift towards the ideal with time.



Fig 11: Invertebrates are not legislated for in the AWA 2006, but the local authority should still consider them during the course of the inspection

There should also be some discussion on planning for those animals that do not sell, such as whether they will be rehomed or have their accommodation upgraded.

Recommended minimum stocking densities for a variety of species groups kept in pet shops were published by the Pet Care Trust in QASPR (2009) and the Model Conditions for Pet Vending Licensing (2013) issued by the CIEH. However, these are only recommendations and one's assessment may vary from those suggested.

Species to pay particular attention to

Birds

The Wildlife and Countryside Act 1981 8(1) states that 'If any person keeps or confines any bird whatsoever in any cage or other receptacle which is not sufficient in height, length or breadth to permit the bird to stretch its wings freely, he shall be guilty of an offence.' This applies to all birds, but should be considered a bare, and unsuitable, minimum (Fig 12).

Snakes

Snakes should be able to completely stretch out, if needed, in one dimension, even if this is across the diagonal. This is particularly so for pythons and boas, which regularly move horizontally with a rectilinear motion.

Fish

Space is deceptive with fish. First, many species can use the whole volume of an aquarium. Secondly, with centralised systems, the actual volume of water in which the fish are kept is often huge (Fig 13). A significant problem is aggression between individuals of the same or different species that causes direct physical damage, or indirect stress, leading to immune suppression and an outbreak of disease. Another issue can be seen in which shops selling pond fish that are housed in large tubs outside. These tubs are usually on a centralised filtration system that means the fish are actually in a large volume of water, but the individual tubs are often relatively shallow. If the fish are startled, typically by sudden movements of people from above (and hence suggestive of aerial predators), the fish will bolt and ricochet off the sides. Occurring many times per day, this causes stress and bruising that predisposes the fish to the establishment of disease. Deeper tubs and/or partial covering of the tubs to provide cover will often resolve this issue.



Fig 12: Under the Wildlife and Countryside Act 1981, it is an offence to keep caged birds, other than temporarily, in a receptacle which is not sufficient in height, length or breadth to allow them to stretch their wings freely. These requirements should be considered a bare and unsuitable minimum

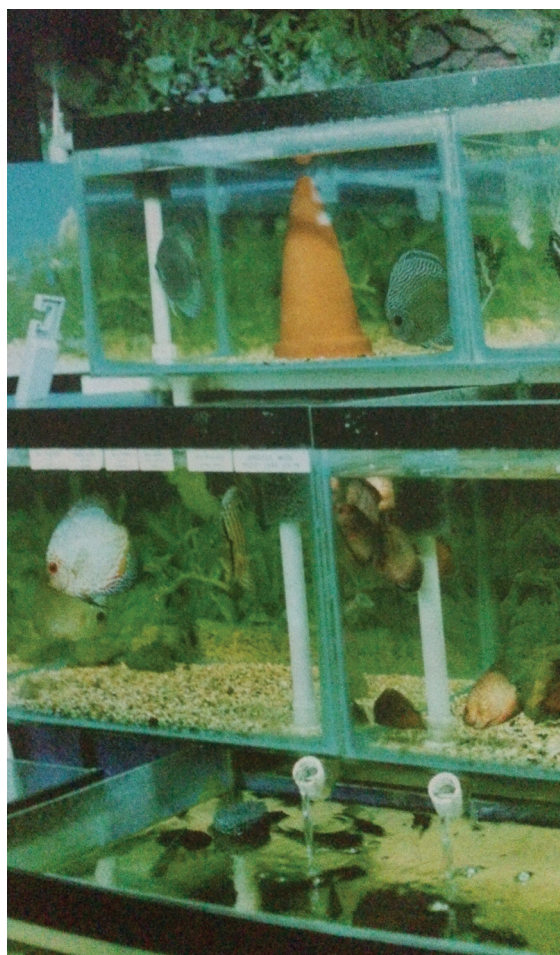


Fig 13: Many aquatic outlets use centralised systems where, although the individual aquaria appear relatively small, the total volume of water is huge

Arguments about space requirements are likely to revolve around aspects of 'industry standards' or present norms of care. One should be mindful of the AWA 2006, in particular section 9(2), discussing animals' needs. Further to this, it should always be borne in mind that enclosure size is not the only consideration for long-term residents; other factors, including environmental complexity, social needs and dietary requirements, must also be catered for.

Heating

Many species require appropriate external heat sources for all or some of their life stages. This heating should be of an appropriate and safe type; importantly, it should be regulated by means of thermostatic controls (Fig 14) and monitored with appropriate thermometers.



Fig 14: Each individual vivarium should have its own thermostatically controlled heating, where appropriate

The requirement for thermal gradients in reptile and terrestrial amphibian vivaria means that each individual vivarium should have individual thermostatic control. Aside from allowing tailoring of individual thermal requirements, this reduces the risk of multiple fatalities following thermostat failure. The use of heat mats as the sole source of heat is often not appropriate as they are poor at space heating; most vivaria will require additional heating sources, such as heat lamps. For nocturnal animals, a suitable means of heating without light is mandatory to allow for normal diurnal rhythms and behaviour. Temperatures should be logged and available for inspection. One piece of equipment that is useful for an inspector is an infrared thermometer gun, which allows accurate measurement of surface temperatures to check thermal gradients in vivaria.

Humidity

Correct humidity levels are important for many species and physiological processes (eg, ecdysis [Fig 15]). Where ambient levels are inappropriate, humidity should be monitored by means of suitable hygrometers and, where necessary, adjusted; for example, with the use of regular spraying, humidifiers, fogging systems or dehumidifiers. If humidity is a significant environmental parameter then it should be logged and available for inspection.

Ventilation

Ventilation should be appropriate for the species and should not be sacrificed for the sake of other environmental parameters, such as temperature and humidity.

Lighting

For many reptile, amphibian and some bird species, full spectrum lighting is necessary for normal vitamin D3 production and for the expression of normal behaviour. Lighting is also crucial for photosynthetic marine invertebrates (Fig 16). Day-night cycles are necessary to allow normal circadian rhythms to function; automatic control of lighting may be necessary to allow appropriate day lengths outside of normal working hours. The type of lighting should be appropriate for the species; the manufacturer, make and model of the light should be noted and dates of replacement logged and available for inspection. In general, a minimum of annual changing is needed for full spectrum bulbs to ensure continuous physiological ultraviolet B emittance.

Water quality

Water quality should be routinely monitored for all aquatic species and amphibious reptiles and amphibians. Minimum



Fig 15: Correct humidity levels are important for species that undergo ecdysis



Fig 16: Photosynthetic marine invertebrates, such as this host anemone for this clownfish, require suitable lighting

requirements would be to assess ammonia, nitrite, nitrate and pH levels, although additional parameters such as hardness, temporary hardness (alkalinity), salinity and ionic concentrations, such as calcium, may be important. These should be logged routinely (at a minimum of weekly intervals) and available for inspection.

Overall cleanliness

One should gain an impression of the overall standards of cleanliness and hygiene; in particular, vivaria with reptiles or bird cages/flights may demonstrate low standards of cleanliness by the presence of old urate and faecal stains on the sides. All work surfaces, especially food preparation areas, should be easily washable and sterilisable. The overall aroma of an establishment may prove significant in your assessment.

Table 1: Species requiring CITES article 10 certification likely to be encountered on pet shop inspections

Common name	Latin name
Birds	
Salmon-crested cockatoo, Moluccan cockatoo	<i>Cacatua moluccensis</i>
Yellow-crested cockatoo, Citron-crested cockatoo, Sulphur-crested cockatoo	<i>Cacatua sulphurea</i>
Scarlet macaw	<i>Ara macao</i>
Military macaw	<i>Ara militaris</i>
Barn owl	<i>Tyto alba</i>
Reptiles	
Spur-thighed tortoise	<i>Testudo graeca</i>
Hermann's tortoise	<i>Testudo hermanni</i>
Egyptian tortoise	<i>Testudo kleinmanni</i>
Margined tortoise	<i>Testudo marginata</i>
Fish	
Asian arowana	<i>Scleropages formosus</i>

The above list features only those species likely to be encountered in a typical pet shop inspection, and not those in more specialist suppliers. For a full list of CITES species see www.defra.gov.uk/ahvla-en/imports-exports/cites/cites-news/new-species-list-11582012

Mixed species

Where different species are kept together, their compatibility with regard to environmental requirements and behavioural characteristics must be noted. For example, it is normal in the industry to mix fish species; but some species mixes may not be appropriate with regard to environmental parameters (eg, temperature), as well as with regard to behavioural traits, such as predation or territoriality. Where issues are noted, these should be addressed. The same is true for reptiles, amphibians and birds. Mammal species are rarely mixed, although rabbits and guinea pigs are occasionally kept together. This should be discouraged because of the frequent aggression shown by rabbits, the risk of bordetellosis transmission from rabbits to guinea pigs and the well-known need for dietary vitamin C supplementation of guinea pigs.

Enrichment

Enrichment covers a wide spectrum of facilitation, ranging from hides to increase the feeling of security to complex 'toys' to stimulate the brain. Of particular concern are those species groups known to be 'intelligent', such as primates, psittacines, dogs and cats where additional stimulation, appropriate to the species, is mandatory (Fig 17). For social species, the presence of conspecifics may also be important enrichment.

Appropriate food and water

Food and water requirements are species specific and should be detailed on the diet sheets. Note that there are some oddities, such as chameleons (Fig 18), which will rarely drink from an open water source and need to be supplied with water via a dropper or spray. Tortoises, bearded dragons and many birds of prey will rarely drink, but should be provided with a water source so that they always have the option to do so.

Boarders

Some pet shops will accept boarders, typically exotic pets and small mammals, as a service to their customers and as a business opportunity. Although there is a need for such a service, there is a significant risk of disease transmission if such boarders are integrated into the normal shop environment. Such boarders should be kept in a separate area, where possible, and serviced with their own utensils, as supplied by the owner. By taking in boarders, the business also takes on the responsibility for the animal(s), even if only temporarily, and, as such, will be subject to the provisions of the AWA 2006 (see section 3[1, 2, 3]). The implications of boarders, in particular to the animal and the customer, but also to the shop livestock, should be discussed.

CITES

Some species of animals sold as pets, particularly some reptiles and fish, have their trade monitored by the Convention on International Trade in Endangered Species of Wild Fauna and Flora (CITES) (Table 1). The commonest species to need an Article 10 issued under CITES by Defra are the Mediterranean tortoises *Testudo graeca* and *Testudo hermanni*.

After the inspection

A report will be submitted to the local authority and, should a licence be granted, a list of conditions will be given. Most local authorities produce a list of standard conditions based upon the legislation, onto which additional ones generated by the inspection can be added. For a new business, there may be a limit on the number of animals



Fig 17: Psittacine birds, such as African grey parrots, are intelligent, so it is important to keep them occupied

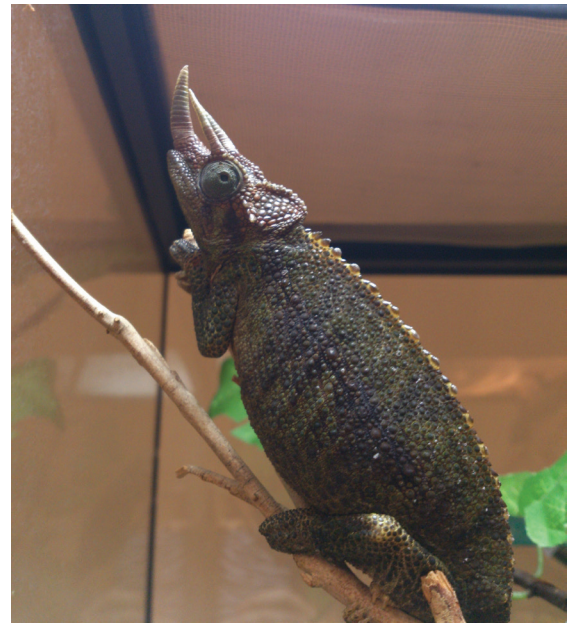


Fig 18: Chameleons will rarely drink from an open water source and so will need to be supplied with water via a dropper or spray

or range of species that can be kept, depending on the assessment of the competency of the proprietor. This can also happen for existing businesses. Improvement notices may be served under either the PAA 1951 or the AWA 2006 if there are concerns that are better covered by the AWA. Where appropriate, conditions should have a time element, with the local authority checking on the progress.

References

EUARK (2012) Reptiles and Amphibians as Companion Animals. The facts. www.fbh.org.uk/news/downloads/euark_brochure_2012.pdf. Accessed April 26, 2015

PAW (2013) The state of our pet nation. www.pdsa.org.uk/files/Paw_Report_2013.pdf. Accessed April 23, 2015

ROYAL MAIL (2013) What can I send. www.royalmail.com/sites/default/files/DangerousGoods_Leaflet_July2013.pdf

SCHUPPLI, C. A. & FRASER, D. A (2000) Framework for assessing the suitability of different species as companion animals. *Animal Welfare* **9**, 359-372

WARWICK, C., STEEDMAN, C., JESSOP, M., TOLAND, E. & LINDLEY, S. (2013) Assigning degrees of ease or difficulty for pet animal maintenance: the EMODE system concept. *Journal of Agricultural and Environmental Ethics* **27**, 87-101

WELSH GOVERNMENT (2012) Codes of Practice. <http://wales.gov.uk/topics/environmentcountryside/ahw/animalwelfare/pets/codesofpractice/?lang=en>. Accessed April 26, 2015

Inspecting pet shops

Lance Jepson

In Practice 2015 37: 333-346
doi: 10.1136/inp.h3396

Updated information and services can be found at:
<http://inpractice.bmj.com/content/37/7/333>

References

These include:

This article cites 2 articles, 0 of which you can access for free at:
<http://inpractice.bmj.com/content/37/7/333#BIBL>

Email alerting service

Receive free email alerts when new articles cite this article. Sign up in the box at the top right corner of the online article.

Notes

To request permissions go to:
<http://group.bmj.com/group/rights-licensing/permissions>

To order reprints go to:
<http://journals.bmj.com/cgi/reprintform>

To subscribe to BMJ go to:
<http://group.bmj.com/subscribe/>